The Supreme Court of South Carolina

Re: Amendments to Rule 509, South Carolina Appellate Court Rules

Appellate Case No. 2026-001021

ORDER

Pursuant to the provisions of Article V, Section 4 of the South Carolina Constitution, Rule 509 of the South Carolina Appellate Court Rules (SCACR), which sets forth the examination process for certification and recertification of magistrate and municipal court judges, is amended as set forth in the attachment to this order.

The amendments to Rule 509(a)(c) SCACR require an applicant to pass all sections of the certification or recertification examination during the same testing session and prohibit an applicant who has received a failing score to inspect the section(s) of the examination failed, the model answers, and the applicant's answers.

In accordance with the provisions of Rule 509(a)(2), SCACR these amendments shall be effective thirty days from the date of this order.

s/ John W. Kittredge C.J.

s/ John Cannon Few J.

s/ George C. James, Jr. J.

s/ D. Garrison Hill J.

s/ Letitia H. Verdin J.

Columbia, South Carolina
May 19, 2026

RULE 509
CERTIFICATION OF MAGISTRATES AND MUNICIPAL JUDGES

(a) Board of Magistrate and Municipal Judge Certification.

(1) Membership and Terms of Office. The Board of Magistrate and Municipal Judge Certification ("Board") shall consist of nine (9) members. The Board members shall be appointed by the Supreme Court for three (3) year terms and shall be eligible for reappointment. In case of a vacancy on the Board, the Supreme Court shall appoint a member to serve the remainder of the unexpired term. The Supreme Court shall appoint a chairperson of the Board from among the Board's membership. The South Carolina State Court Administrator("Administrator"), or his or her designee, shall serve as secretary of the Board *ex officio*.

(2) Duties. It shall be the duty of the Board to determine whether magistrates and municipal judges in South Carolina possess the necessary legal knowledge for appointment and reappointment, pursuant to the provisions of S.C. Code Ann. §§ 22-1-10 and 14-25-15. Subject to the approval of the Supreme Court, the Board is empowered to make rules and regulations for conducting the required training program curriculum and examinations, including a list of the subjects upon which applicants may be tested. Thirty (30) days notice must be given of any changes to the rules and regulations.

(b) Application for Certification or Recertification Examination. Members in good standing of the South Carolina Bar are exempt from certification and recertification examination requirements. For purposes of this Rule, ministerial magistrates and municipal ministerial recorders are considered magistrates and municipal judges and are subject to certification and recertification requirements. Examinations for certification or recertification of non-lawyer magistrates and municipal judges shall be conducted at least three times each year at such times as the Board shall specify. Any person desiring to take the Examination shall file an application with the Administrator on a form prescribed by the Board. Applications shall be accepted up to the first day of the month in which the examination is given. Only active magistrates and municipal judges may apply for examination. An application will not be considered filed until it is fully completed and received by the Administrator.

(c) Examination Results. The Certification and Recertification Examinations shall consist of such sections as may be specified by the Board. The Board shall certify whether an applicant passed or failed for each section of the examination to the Administrator who shall promptly then notify the applicants. An applicant must pass each section of the examination to be deemed certified or re-certified pursuant to this Rule.

No applicant shall be given access to the answers the applicant submitted during the certification examination. The results reported for the examination are final, and no applicant shall be allowed to seek re-grading or any other review of the results of the examination. While no review or inspection of the certification exam will be permitted, an applicant who feels an error has been made in grading may petition the Supreme Court to have the examination regraded. The petition, accompanied by a filing fee of fifty dollars ($50), must be filed with the Supreme Court within ten (10) days of an applicant's receipt of the examination score.

(d) Re-examination. Any applicant who has failed to pass any section of the examination may apply to be re-examined as often as the examinations are offered and must re-take and pass all sections of the examination to be deemed certified or re-certified pursuant to this Rule. The application shall be made on a form furnished by the Administrator. The time limits applicable to filing initial applications shall be applicable to applications for re-examination.

(e) Confidentiality. The files and records maintained by the Board relating to applications, examinations, and re-examinations shall be confidential and shall not be disclosed except as necessary for the Board to carry out its responsibilities. The Board may disclose the names of those persons who have successfully completed the certification process. The Supreme Court may authorize the release of confidential information to other persons or agencies.

(f) Failure to Obtain Certification or Recertification. If a magistrate fails to obtain certification or recertification within the time period prescribed by § 22-1-10, the Board shall send a written notice to the Governor that the magistrate has failed to timely obtain certification or recertification, that the magistrate's office is vacant, and that the Governor should appoint a successor. A copy of the notification shall be sent to the magistrate.

If a municipal judge fails to obtain certification or recertification within the time prescribed by § 14-25-15, the Board shall send a written notice to the City Council that the municipal judge has failed to timely obtain certification or recertification,

that the municipal judge's office is vacant, and that the Council should appoint a successor. A copy of the notification shall be sent to the municipal judge.

Last Amended by Order dated May 19, 2026, effective June 18, 2026.